

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS' STATEMENT IN RESPONSE TO THE COMMISSION'S MAY 11,
2022 REGARDING PENDING MOTIONS OR EXCEPTIONS AND FORMS OF RELIEF
REQUESTED**

Pursuant to the Commission's instructions as set forth in the May 11, 2022 Order, Complainants advise the Commission as follows:

1. Status of Motions and Exceptions: There are no motions currently pending before the Commission, however, the undersigned plans to shortly file a Motion to have attorney Seth M. Katz removed as counsel of record for Complainants. Complainants have not withdrawn their Exceptions.
2. With regard to the specific forms of relief sought by Complainants in Doc. 1 (the Complaint), Complainants seek an award of monetary reparations and attorneys' fees. Documents 73, 112 and 128 were not filed by Complainants herein. To the extent that the Commission determines that it has the authority to *sua sponte* sanction and/or consider disciplinary action, it is requested that counsel for respondents be sanctioned and/or disciplined upon the finding that respondents' counsel has knowingly refused to withdraw

respondents' pending Exceptions to the Presiding Officer's Decision Not to Consider Disciplinary Action (while knowing that the arguments set forth therein had already been barred by res judicata, as explained in the undersigned's Declaration).

Dated: August 10, 2022

Respectfully submitted,

/s Marcus Aurelius Nussbaum
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Attorney for Complainants